from the nature of municipal law as it is law among states and regulates the conduct of the states.

There exists another debate regarding the relationship between international law and municipal law. Which one has a primacy over the other? If municipal law is taken in the first instance, one would find that it is generated by well-developed legislative institutions such as the Parliament (UK, India, for instance) or the Congress (e.g. USA) or the like. International law, as compared to the municipal law, has no institutionalized legislative sources. The United Nations General Assembly (UNGA) may resemble a legislature of a state and can be regarded as a global legislature, but the decisions taken in the UNGA reflect the aspirations and wishes of the majority of governments represented in the United Nations. These resolutions have neither legal nor substantive binding power.

Further, municipal laws have proper agents for their execution such as the executive branch of a government of a state. Such institutions do not exist at the global level. Even the United Nations cannot be regarded as an executor of International law. In case of municipal law there is also a system which enables such laws to be interpreted and applied to specific cases by the municipal courts that have compulsory jurisdiction regardless of consent over their subjects. On the other hand, the International Court of Justice can hear only those cases referred to it by the consenting governments or international organizations. The greatest weakness of this whole system is that there is no executive authority to enforce the Court's decision. It is entirely up to the states to adhere to the verdict of the Court.

The adoption or adherence to international law in most cases depend on how far the specific municipal measure of statutory or judicial incorporation has been undertaken by a state so that the international law becomes binding within the municipal sphere too. Therefore, regarding the question of primacy, it is often considered that municipal laws enjoy a primacy over international laws. In India, e.g., the Directive Principles of the State Policy under Part IV of the Indian Constitution, Article 51 contains provisions that the state shall endeavour to:

1. Promote international peace and security.